

SFIO vs. Adarsha Build Estate and others COMA No. 05-2019

Present: Shri Satish Aggarwal, Advocate Special Counsel for SFIO
and also for DRI
Shri Hari Kishan Senior Public Prosecutor for SFIO.
Accused nos. 144 to 148, 150, 151, 156, 157, 158, 159, 161,
163, 164, 166, 167, 168, 169, 171, 174, 179 to 186, are on
bail in person.
Shri Ranjan Kumar, Advocate for the accused no. 103 and 106
Shri J.H. Khan, Advocate for accused no. 178.
Ms. Manisha Singh, Advocate for accused no. 180 and 181.
Shri Puneet Sharma, Advocate for accused no. 149
Shri Ajit Sharma, Advocate for accused no. 177.
Accused no. 1 to 70 are represented through accused no.
Rahul Modi (123) (who is in custody in Jaipur Jail).
Accused no. 71 to 78 are represented through accused
Sidharth Chauhan (135) (against whom warrants of arrest
already issued).
Accused no. 79 is represented through accused no. Vivek
Hari Vyas (115)
Accused no. 80 is represented through accused Naveen
Kumar (139) (against whom warrants of arrest
already issued).
Accused no. 81 and 82 are represented through accused
Surender Singh (140) (who is in custody in Bhondsi Jail).
Accused no. 84 is represented through accused Abhya K.
Shah (127) (against whom warrants of arrest
already issued).
Accused no. 85 is represented through accused Jainum
Rathore (130) (who is in custody in Bhondsi Jail)
Accused no. 86, 87 and 88 are represented through
AR Jai Singh (in person)
Accused no. 89 is represented through accused Raj Kumar
Bohra (171)
Accused no. 90 to 93 are represented through accused
Vivek Hari Vyas (115) who is on interim bail.
Accused no. 94 to 97 are represented through Shri Rahul,
AR (in person)
Accused no. 98 is represented through Shri Naresh Kumar
AR (in person)
Accused no. 99 and 100 are represented through accused
Raj Kumar Modi.(176) (who is on interim bail)
Accused no. 101 is represented through Shri Abhishek
AR (in person)
Accused no. 102 is represented through Shri Deepak
AR (in person)
Accused no. 103 is represented through Shri Dharmender
AR (in person)

Accused no. 104 is represented through Shri Pawan Sharma
AR (in person)
Accused no. 105 is represented through Shri Anup
AR (in person)
Accused no. 106 is represented through Shri Kashi Nath Jha
AR (in person)
Accused no. 107 is represented through Shri Fateh Singh
AR (in person)
Accused no. 108 is represented through Shri Ranjan Kumar
AR (in person)
Accused no. 109 is represented through Shri Vikas Paul
AR (in person)
Accused no. 110 is represented through Shri Raju Yadav
AR (in person)
Accused no. 111 is represented through Shri Ritik Sharma
AR (in person)
Accused no. 112 is represented through Shri Devender
AR (in person)

Shri Satish Aggarwal, Advocate representing DRI has prayed through an application moved on behalf of DRI, Head Quarters seeking permission to make enquiry under Section 108 of Custom Act, 1962 from Jainum Madhukant Rathore, accused no. 130, in custody in connection with the present complaint. On request, case is adjourned for tomorrow i.e. 09.09.2021 only for arguments on application moved on behalf of DRI.

An application is moved for substitution of Authorized Representative from Mohd. Miraz to Mr. Dharmender of M/s Funny Software Limited (accused no. 103) and another application for substitution Authorized Representative from Neeraj to Mr. Kashi Nath Jha of M/s Kanak Krishi Implements Limited, (accused no. 106). In view of the contents of the application which are supported by authority letter and resolution, Shri Dharmender is allowed to appear as Authorized Representative for accused no. 103 and Shri Kashi Nath Jha for accused no. 106. Accordingly, application stand disposed off.

An application for exemption from personal appearance on behalf of accused no. 178 namely Mahesh Dutt Sharma has been moved by Shri J.H. Khan, Advocate, who has also referred to the order passed by Hon'ble High Court in "Mahesh Dutt Sharma vs. SFIO"

CRM-M-20279-2020 dated 27.07.2020, whereby Hon'ble High Court after adjourning the case for 10.08.2020, has referred to the assurance given by Learned Additional Solicitor General of India representing SFIO, to the effect that till the next date of hearing, no coercive action shall be taken against the petitioner. Since, there is nothing on record that Hon'ble High Court has recalled its order passed on 27.07.2020, the application for seeking exemption of accused Mahesh Dutt Sharma is allowed for today only.

An application under Section 317 of Cr.P.C. on behalf of accused no. 127 seeking exemption from personal appearance has been moved by his counsel. Heard. Since, admittedly, learned Predecessor of this Court vide order dated 23.09.2019, had rejected anticipatory bail application moved on behalf of the accused by passing a detailed order and till date, the accused against whom warrants of arrest are in issuance but he has not surrendered before the court to be taken in custody, if so required and to proceed further in accordance with law, the present application for exemption is not maintainable in this case, which is governed by Special statute and for bail purposes requirement of Section 212 (6) of the Companies Act, 2013 is to be met with. Hence, the same is dismissed.

Accused no. 149 Vijay Shukla has appeared in person and marked his presence. His counsel has placed on record the order passed by Hon'ble Apex Court in case titled as "Vijay Shukla vs. Serious Fraud Investigation Office", IA No. 104987-2021 dated 03.09.2021, wherein Hon'ble Apex Court after adjourning the matter to 27.09.2021, has directed "the petitioner not to be arrested in connection with the stated offence but on condition that the petitioner shall extend full co-operation to the Investigating Officer, as and when called upon to do so in connection with subject FIR.

Learned PP has informed this Court that there are ten accused namely Ajit Singh Rathore (150), Ram Lal Arya (158), Hemant Kumar Jain (159), Parveen Kumar (161), Damayanti Bhandari (179),

Nimesh Kumar Ramesh Soni (182), Ritu Raj Singh (183), Dushyant Singh Rathore (184) Shashank Singh Rathore (185) and Jitesh Kumar Parmar (186), who were granted bail by Hon'ble High Court on the ground that they shall co-operate with the prosecution, as they have become approver. He also intimated that applications of these ten accused are on record to this effect. He further requested to record their statements in accordance with law. Heard. Since this court is already over burdened with old cases, it would not be possible to record the statements of these accused in one go. Hence, let Shri Ajit Singh and Ram Lal Arya accused nos 150 and 158 respectively, be recalled for recording their statements on 17.09.2021 at 2:00 p.m. Rest of the approvers will be informed about the dates for recording their statements latter.

The accused no. 130 Jainum Rathore is produced through video conferencing from Bhondsi Jail. Accused Surender Singh no. 140 could not be produced through VC as stated to be admitted in Civil Hospital, Gurugram for treatment. The accused namely Mukesh Modi (113), Priyanka Modi (117), Vaibhav (120), Virender Modi (122), Rohit Modi (123), Rajeshwar Singh (125), Bharat Modi(126), Ishar Singh Sindal (131), Vivek Purohit (134), Bharat Dass (142), are not produced through video conferencing from Jaipur Jail because of technical issue. Let their production warrants be issued for 23.12.2021.

Bailable warrants issued against accused Vijay Shukla have become infructuous as has appeared under the protection of Hon'ble Apex Court's order dated 03.09.2021. Since, Hon'ble Apex Court has not mentioned about bail to the accused Vijay Shukla, this Court would wait for final order from Hon'ble Apex Court to ask the accused to submit bail bonds, if bail granted.

Bailable warrants issued in respect of accused Nazima Khan (152) and accused Shabbir Khan (153) received back unserved with the report that both accused having some address are out of station and it is not known as to when they would be back. This report has been made on the information provided by Mr. Kamruddin, working as gate

keeper at the house of the accused. The kind of report received and having in mind earlier reports qua these accused, it is concluded that the accused are intentionally avoiding their appearance before this Court to further delay the disposal of case, hence, let they be summoned through warrant of arrest for 23.12.2021.

Warrants of arrest issued in respect of accused Nithin Rathore (116), Jitender Vyas (118), Vijay Kumpawat (119), Paras Bholia (121), Abhay K. Shah (127), Manish Chaudhary (128), Deepak Sri Mali (129), Sidharth Chauhan (135), Akshat Singh (136), Chhinder Pal Singh (137), Gurbir Singh Sandhu (138), Naveen Kumar (139), Aditya Sharda (141), Sudhir Punia (143), Shiv Raj Sharma (160), Naveen Chaudhary (162), Sham Bihari Gupta (165), Sudhir Mehta (170), Sourav Dak (172), Piyush Aggarwal (173), Rajeev Kumar Rana (177) and Prakash Chandra Purohit (133) are received back unexecuted with report either house is found closed or no one is staying there or house found locked or not found at home etc. The kind of reports received on the warrants of arrest indicates that apparently the accused named above are avoiding their arrest by making one excuse or the other but in the interest of justice, let fresh warrants of arrest be issued against the accused for 23.12.2021, with the directions to the Executing Staff to attach proof of their visit to the addresses given of the accused in the form of their attendance in the local police station of the area, so that this Court could take final decision as to whether or not process under section 82 of Cr.P.C., is to be initiated against these accused persons on the next date of hearing.

An application is moved on behalf of accused Rajeev Kumar Rana (177) for cancellation of the warrant of arrest and exemption from personal appearance of the accused. Notice of the bail application is given to the complainant to submit his reply on dated 15.09.2021 and consideration.

Notice issued to accused no. 83 not received back either served or unserved. Let fresh notice to the accused no. 83 be issued to comply with the provisions of Section 305 (2) Cr.P.C. and in case none

appear on next date of hearing, this court would be compelled to presume that compliance of Sub Section 3 to Section 305 is not be made in respect of the accused company (83)and, if found guilty finally, order shall be passed in accordance with law.

Death report of accused Mahender Kumar Tak (155) and Mahesh Kumar Tak (187) not received. Let death report of accused be also called from the concerned SHO on 23.12.2021

Learned counsel for SFIO has stated that accused Vijay Kumar Jhindal (175) has expired. Let death report of accused Vijay Kumar Jhindal (175) be called from the concerned SHO on 23.12.2021.

It is made clear that the accused on bail are not required to appear on the dates which are fixed for deciding the misc. applications.

(Phalit Sharma),
ASJ/Gurugram
UID Code No. HR105

Date of Order: 08.09.2021

Neeru: